

FL-26-000872 HOYOS VS VARGAS-GUZMAN

County: stanislaus

Division: Family Law

Department: 25

Hearing date: 2026-08-13

Motion: Third-Party's Motion re Joinder—DENIED, without prejudice. There is no proof of service on file for either Petitioner or Respondent, as required. (Cal. Rules of Ct., rule 5.94(b).) That said, even if both parties were to appear and waive service, Third-Party is advised that claiming a long-standing relationship as a grandparent of a minor child is not, by itself, sufficient to grant joinder and allow the grandparent to seek child visitation rights. Here, the parties are unmarried and the most recent custody order provides for Petitioner's sole legal and physical custody. Consequently, if the joinder motion is refiled and properly served, but Petitioner objects to court-ordered visitation with Third-Party, then Third-Party will have to prove by clear and convincing evidence at a long-cause hearing that such visitation is in the minor child's best interests because Petitioner has a constitutional right to parental autonomy in making decisions concerning the minor child's best interests. (Fam. Code § 3104(a)(2); Cal. Rules of Court, rule 5.24(e)(1)(B); Local Rules, rule 7.08(B)(2); In re Marriage of Harris (2004) 34 Cal.4th 210, 222.

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